

TENTATIVE RULING FOR AUGUST 19, 2026

Department R12 - Judge Kory Mathewson

Angela Carmell v. Kathleen Janet Genus Robinson Haywood, et al – CIVRS2502080

Motion: (1) Motion to Compel Defendant Euclid Manor Management LLC's Further Responses to Special Interrogatories, Set One, and Sanctions
(2) Motion to Compel Defendant Gracie Glow LLC's Further Responses to Special Interrogatories, Set One, and Sanctions
(3) Motion to Compel Defendant 8424 Western Plaza LLC's Further Responses to Special Interrogatories, Set One, and Sanctions

Movant: (1)-(3) Plaintiff Angela Carmell

Respondent: (1) Defendant Euclid Manor Management LLC
(2) Defendant Gracie Glow LLC
(3) Defendant 8424 Western Plaza LLC

Ruling: Motions 1-3 are MOOT except for sanctions. Sanctions are GRANTED as follows:

- Against Defendant Euclid Manor Management LLC and their former counsel, Joyce Vega, Esq, joint and several, in the total amount of \$510;
- Against Defendant Gracie Glow LLC and their former counsel, Joyce Vega, Esq, joint and several, in the total amount of \$510; and
- Against Defendant 8424 Western Plaza LLC and their former counsel, Joyce Vega, Esq, joint and several, in the total amount of \$510.
- Sanctions due within 60 days.

Plaintiff to provide Order and give notice.

Plaintiff asserts that the respective Defendants failed to timely respond to the discovery at issue and, therefore, are required to provide further responses without objections. Plaintiff also seeks sanctions. On June 24, 2026, the Defendants at issue filed Substitutions of Attorney that substituted in The Law Offices of Jeffrey B. McMillen as counsel. As the replies concede, on August 7, 2026, along with serving oppositions, Defendants served amended responses to the discovery at issue. Therefore, the various motions to compel are now moot, except for sanctions. Defendants claim the motions should have been taken off calendar once Defendants agreed to amend their responses in a meet and confer that occurred on July 28, 2026 after new defense counsel substituted in.

Sanctions

In each motion, Plaintiff's notices of motion seeks sanctions of \$1,350 against each of the respective Defendants and their former counsel Joyce Vega, Esq. But Plaintiff's counsel's declaration in support only discusses \$870 in sanctions being sought, which is comprised of 0.8 hours to draft the motions, an estimated 1 hour to draft a reply and appear at the hearing at \$450/hour, plus the \$60 filing fee. (DeRosa Decls. ¶¶ 7-8.) It is unclear the basis for the \$1,350 in sanctions that is stated in the notice.

The oppositions concede service of the Special Interrogatories at issue and assert that since the filing of the motions, Defendants have changed counsel and have agreed to supplement

and amend the original responses. The oppositions state amended or supplemental responses were pending and would be served before the motions.

Defense counsel states that during the parties meet and confer on July 28, 2026, he explained that the prior failures were no longer relevant and that amended responses would be recommended to Defendant. Defense counsel explained that he believes the motions will be moot upon amended responses being served and requested the motions be taken off calendar. He claims that in response, Plaintiff's counsel advised that there was a large amount that Defendants globally owed in prior sanctions that remained unpaid. Plaintiff stated that all prior sanctions must be paid or the motions will remain on calendar. Defense counsel claims he responded that this was an improper use of discovery. (McMillen Decls. ¶¶ 3-6.)

Defendants argue that they should not be punished for prior counsel's failure in representation, and prior counsel should have made efforts to respond to Plaintiff's original meet and confer. Defendants also ask for sanctions in having to file opposition, seeking sanctions of \$1,012.50. This amount is comprised of 1.2 hours for each opposition and an anticipated 1.5 hours to review the respective replies and appear at the hearing at \$375/hour. (McMillen Decls. ¶ 7.)

On Reply, Plaintiff opposes that Defendants seek sanctions, arguing that for Defendants to seek sanctions against Plaintiff for "abuse of the discovery process" is absurd, especially given what has occurred. Plaintiff's counsel states that at the July 28, 2026 call, he stated that he would take the motions off calendar if: (1) Defendants paid the prior sanctions ordered by the Court; (2) Defendants served amended responses; and (3) Defendants paid a reduced sanction amount for the present motion. The reduced amount is not stated. (DeRosa Decls. ¶¶ 3-4.) Plaintiff's counsel states that when Defendants refused to engage in the meet and confer process, he was left with no choice but to file the motions. He states that after the July 28, 2026 phone call he did not hear anything from defense counsel, not even that Defendants would be serving amended responses. (DeRosa Decls. ¶ 5.)

To the extent Plaintiff complains on Reply that there is over \$21,840 in sanctions related to the prior 32 motions served on various defendants, that issue is irrelevant to the motions before the Court. In *Newland v. Superior Court* (1995) 40 Cal.App.4th 608, 615 (*Newland*), the Court stated, "Weil and Brown observe that many attorneys seem to be unaware that monetary sanction orders are enforceable through the execution of judgment laws. [Citation] These orders have the force and effect of a money judgment, and are immediately enforceable through execution, except to the extent the trial court may order a stay of the sanction. [Citations.]" In *Newland*, the Court found the parties failure to pay monetary sanctions did not warrant terminating sanctions. (*Newland, supra*, 40 Cal.App.4th at pp. 613-616.)

Nonetheless, it is without dispute that under prior defense counsel, Defendants failed to meet and confer and did not agree to provide supplemental responses. It was only with new counsel being substituted in that amended responses to the discovery at issue were provided. By serving amended responses, Defendants concede Plaintiff's motions had merit.

Therefore, the Court grants Plaintiff's requests for sanctions and denies Defendants' requests for sanctions. As for the amount, there are seven motions that repeat the same arguments

in the motions and replies, the amount sought is not reasonable. As the motions and replies are identical, the Court finds one hour total for both for each motion is reasonable. Thus, a reasonable sanction amount for each motion is \$510 (\$450/hour + \$60 filing fee). Further, sanctions should be imposed against Defendants and their former counsel Joyce Vega, Esq, as noticed (not newly substituted counsel). Vega was still counsel when the motions were filed and received service of the motions. Therefore, Vega has received notice that sanctions are being sought against her.

Dated: August 19, 2026

Judge Kory Mathewson

TENTATIVE RULING FOR AUGUST 20, 2026

Department R12 - Judge Kory Mathewson

Angela Carmell v. Kathleen Janet Genus Robinson Haywood, et al – CIVRS2502080

Motions: (1) Motion to Compel Defendant KMSR WST Solutions LLC's Further Responses to Special Interrogatories, Set One, and Sanctions
(2) Motion to Compel Defendant KMSR Holding Ventures LLC's Further Responses to Special Interrogatories, Set One, and Sanctions
(3) Motion to Compel Defendant Palmyra Villa LLC's Further Responses to Special Interrogatories, Set One, and Sanctions
(4) Motion to Compel Defendant ISH Market Solutions LLC's Further Responses to Special Interrogatories, Set One, and Sanctions

Movant (1)-(4) Plaintiff Angela Carmell

Respondent: (1) Defendant KMSR WST Solutions LLC
(2) Defendant KMSR Holding Ventures LLC
(3) Defendant Palmyra Villa LLC
(4) Defendant ISH Market Solutions LLC

Ruling: Motions 1-4 are MOOT except for sanctions. Sanction are GRANTED as follows:

- Against Defendant KMSR WST Solutions LLC and their former counsel, Joyce Vega, Esq, joint and several, in the total amount of \$510;
- Against Defendant KMSR Holding Ventures LLC and their former counsel, Joyce Vega, Esq, joint and several, in the total amount of \$510;
- Against Defendant Palmyra Villa LLC and their former counsel, Joyce Vega, Esq, joint and several, in the total amount of \$510; and
- Against Defendant ISH Market Solutions LLC and their former counsel, Joyce Vega, Esq, joint and several, in the total amount of \$510.
- Sanctions due within 60 days

Plaintiff to provide Order and give notice.

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\$450/hour, plus the \$60 filing fee. (DeRosa Decls. ¶¶ 7-8.) It is unclear the basis for the \$1,350 in sanctions that is stated in the notice.

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counsel being substituted in that amended responses to the discovery at issue were provided. By serving amended responses, Defendants concede Plaintiff's motions had merit.

Therefore, the Court grants Plaintiff's requests for sanctions and denies Defendants' requests for sanctions. As for the amount, there are seven motions that repeat the same arguments in the motions and replies, the amount sought is not reasonable. As the motions and replies are identical, the Court finds one hour total for both for each motion is reasonable. Thus, a reasonable sanction amount for each motion is \$510 (\$450/hour + \$60 filing fee). Further, sanctions should be imposed against Defendants and their former counsel Joyce Vega, Esq, as noticed (not newly substituted counsel). Vega was still counsel when the motions were filed and received service of the motions. Therefore, Vega has received notice that sanctions are being sought against her.

Dated: August 20, 2026

Judge Kory Mathewson